

instances of misuse of state authority, but only such as possess the character of "purposeful discrimination"⁸⁸ which amounts to a denial of equal protection. The evil that § 2 meant to stamp out was the evil of conspiracy—more particularly, the evil of the Klan, "a conspiracy, so far-flung and embracing such numbers, with a purpose to dominate and set at naught the 'carpetbag' and 'scalawag' governments of the day," that it appeared "able effectively to deprive Negroes of their legal rights and to close all avenues of redress or vindication." *Collins v. Hardyman*, 341 U. S. 651, 662.⁸⁹ The enormity and the power of this organization were what made it dangerous.⁹⁰ Section 1 aimed at another evil, the evil not of combinations dedicated to purposeful and systematic discrimination, but of violation of any rights, privileges, or immunities secured by the Constitution through the authority, enhanced by the majesty and dignity, of the States. Here it was precisely this authorization, this assurance that behind a constitutional violation lay the whole power of the State, that was the danger. One can agree that these two statutory sections may overlap unevenly rather than

scope of federal enforcing power under the Equal Protection Clause reached further, in respect of situations in which there was no assertion of legitimate state authority, than did the equivalent scope of power under the Due Process and Privileges and Immunities Clauses. See, *id.*, at 459, 482, 505-506, 514, 607-608, 697, App. 251, 315. This appears to be why § 2 was acceptable in its amended, while not in its original, form.

⁸⁸ *Snowden v. Hughes*, 321 U. S. 1, 9; see also *Lisenba v. California*, 314 U. S. 219, 226.

⁸⁹ I agree that this is not the appropriate occasion to pass upon the construction of § 1985.

⁹⁰ For an appreciation of the nature and character of the Ku Klux Klan as it appeared to Congress in 1871, see S. Rep. No. 1, 42d Cong., 1st Sess., and the voluminous report of the Joint Select Committee to inquire into the Condition of Affairs in the late Insurrectionary States, published as S. Rep. No. 41, pts. 1-13, and H. R. Rep. No. 22, pts. 1-13, 42d Cong., 2d Sess.